

Amendment No. 1 to HB0025

White
Signature of Sponsor

AMEND Senate Bill No. 16

House Bill No. 25*

by deleting § 49-2-901 in Section 1 and substituting:

49-2-901.

(a) A public school shall not use public funds to join, become members of, or maintain membership in an association that regulates interscholastic athletics unless the association allows a high school student who transfers for the first time to another member school due to a significant academic, social-emotional, environmental, or mental health need to be immediately eligible to participate in interscholastic athletics at the member school to which the student transfers if:

(1) The sending member school does not attest within seven (7) days from the date on which the student transferred that the student's transfer is due to athletic or disciplinary reasons; and

(2) The student's transfer occurs before the first day of the school year for which the student seeks to participate in interscholastic athletics.

(b) This section does not create a private right of action.

AND FURTHER AMEND by deleting § 49-2-903 in Section 1 and substituting:

49-2-903.

(a) If a student is placed in foster care, as defined in § 37-1-102(b)(17), and the student seeks to participate in interscholastic athletics, then the public school or public charter school in which the student is enrolled shall notify an association that regulates interscholastic athletics of the student's placement in foster care, if failure to notify the

association of the student's placement may result in the student being deemed ineligible to participate in athletics for any period of time.

(b) Notwithstanding subsection (a), a public school or public charter school shall not notify an association that regulates interscholastic athletics of a student's placement in foster care unless the school first obtains written consent from the student's parent or - legal guardian, or from the student if the student is eighteen (18) years of age or older, prior to making the notification.

(c) A notification made pursuant to this section must be made in accordance with state law, the federal Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. § 1232g), and other relevant privacy laws.